

(1999) 76 Cal.App.4th 970, 974.) Petitioners fail to suggest, let alone establish, that the documents sought “relate to the matter in which [Ms. Klussman] seeks relief . . .”

Second, because the documents sought by these requests are not relevant to allegations in the Surcharge Petition, in order to establish that the documents are relevant to Ms. Klussman’s credibility, Petitioners are required to make an evidentiary showing that she “hid or failed to disclose the existence of IRA accounts from her adult son(s).” (See (*Calcor Space Facility v. Super. Ct.* (1997) 53 Cal.App.4th 216, 223 [held: where good cause for production cannot be established by reference to the pleadings, the burden on the party seeking discovery is to “produce evidence from which the court may determine” that “the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence”].) Petitioners cite to no such evidence in their Separate Statement. (See Rule 3.1345.)

The evidence before the Court, although not in the Separate Statement, presented through the Declaration of Abby L. Bloetscher is conclusory and lacks foundation. Through a Supplemental Declaration, Ms. Bloetscher provides limited additional evidence and suggests the South Dakota protective order precludes her to provide more. She suggests that she should present the evidence in camera.

While the Court agrees that the credibility of a witness is always at issue at trial, the breadth of these requests would capture all communications between Ms. Klussman and her sons related to the IRA accounts – not just those which might support a challenge to Ms. Klussman’s credibility. Given the fact the IRA accounts are not Trust property, Max and Dakota’s right to privacy in their financial affairs and the lack of specificity in the Demands and evidence presented to the Court, the Court DENIES the motion as to these requests.

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Conservatorship of Brenda Cortes

21PR000132

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on August 08, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Cynthia Lu Pontynen

25PR000087

REVIEW – 1ST YEAR

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Accountings are hereby waived so long as the conditions under Probate Code section 2628, subdivision (a) continue to be satisfied. The matter is set for a Review – Biennial hearing in two years, on August 08, 2026, at 8:30 a.m. in Dept. B.